

### Analysis

Mail service was completed at the address for Defendant's counsel of record. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement, filed on 1/17/24, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$16,101.76, plus costs, less any credits for payments received.

The Defendant made payments of \$7,050.

Costs are \$578.50. A memo on costs was filed with the court.

A dismissal was entered on 1/31/24.

### Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$9,630.26.

Plaintiff to file order on Motion, as well as submit Judgment.

**4. 9:00 AM CASE NUMBER: L23-03486  
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. STEPHANIE JIN  
\*HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO STIPULATION  
FILED BY: JPMORGAN CHASE BANK, N.A.**

### **\*TENTATIVE RULING:\***

#### Background

Plaintiff filed, on 11/6/25, a motion to enter judgment pursuant to stipulation.

The Motion is unopposed.

The motion was originally scheduled for 1/27/26, but was continued by the court to 4/7/26, for lack of service on the Defendant. Plaintiff had notified only an attorney about the 1/27/27 Motion, yet there was no evidence that the attorney was in fact counsel of record.

The court had ordered the Plaintiff to notify the Defendant of the 4/7/26 hearing.

There is still no evidence that Plaintiff has served Defendant with notice of this Motion

date, nor with a copy of the Motion.

Disposition

The Motion will be dropped for calendar. It will not be continued.

6. 9:00 AM CASE NUMBER: L24-03495

CASE NAME: DISCOVER BANK VS. LYNDIA MATTHEWS

\*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

FILED BY: MATTHEWS, LYNDIA J

\*TENTATIVE RULING:\*

**Background**

Defendant filed a Motion, on 1/26/26, to set aside the Default Judgment, claiming that there was a lack of actual notice, under Section 473.5 of the CCP, and also attributing the failure to respond to mistake, inadvertence, neglect or surprise, under Section 473(b) of the CCP.

The Default Judgment was filed on 9/30/25.

The Motion is unopposed, but there is no proof that the Plaintiff was given notice of Defendant's motion or the hearing.

However, given the court's tentative ruling, below, there is no prejudice to the Plaintiff in proceeding with this analysis.

**Analysis**

Defendant seeks relief under Section 473.5 of the Code of Civil Procedure, which confers power on the court to set aside a default judgment when the defendant does not receive actual notice of the process; as well as Section 473(b) of the CCP, which provides the same authority in cases where a defendant acts or fails to act out of mistake, inadvertence, surprise or excusable neglect.

Section 473(b) of the CCP requires that the motion be made no later than 6 months from the time the judgment was taken.

Section 473.5 of the CCP allows a longer period of time within which a defendant can make a motion, which is the earlier of: 2 years from the time judgment was taken; or 180